

MATA/83/2020 on 30 March, 2021

Author: S.Panda

Bench: S.Panda

MATA No. 83 of 2020

03. 30.03.2021

Heard.

The appellant in this appeal challenging the judgment dated 16.3.2020 passed by the learned Judge, Family Court, Dhenkanal in C.P. Case No. 54 of 2018 wherein the Court below declared that the marriage certificate issued by respondent No.2's Organisation (AMOF0I) in favour of the parties is nonest in the eye of law and is not binding upon them. It was also given a further finding that the marriage between the appellant and respondent No.1 is not a valid marriage in the eye of law and the respondent No.1 is not the legally married wife of the appellant.

The present respondent No.1 has filed an application before the court below under Section Explanation(b) of the Family Court Act, 1984 against his husband to declare that the certificate issued by the respondent No.2(AMOF0I) is nonest in the eye of law and to

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declare that the respondent No.1 is not the wife of appellant. It was also pleaded that fraudulently the marriage certificate obtained from the office of respondent No.2. Taking advantage of the fact that while she was prosecuting her study in a college hostel the respondent is the brother of her roommate as such offered some drinks and after that the applicant become abnormal. Taking advantage of the said situation her signature was taken in some papers and photographs also taken. Thereafter the respondent threatened and offered them not to be given marriage to any other person. She denied that there is no absolute

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relationship between them. Mat Case No. 90 of 2016 was dismissed for restitution of conjugal right. Suppressing the said fact again an application was filed which was registered as C.P. No. 39 of 2017 for the selfsame prayer. There are other criminal cases also filed against him where he was arrested.

The present appellant has filed his written statement challenging the maintainability of the case taking a stand that the respondent No.1 has filed the case by suppressing the truth and trying to mislead the Court by presenting the concocted story and there is no cause of action for respondent No.1 to file the case. It was pleaded that the appellant and respondent No.1 mate with each other in the year 2012 and their relationship gradually developed and they fall in love with each other and decided to marry. The family members of both parties showing respect to their decision has agreed for their marriage and decided to solemnize their on 27.2.2016 at Kalyan Mandap, Muniguda. But both parties prior to intimating to their family had already contacted with the respondent No.2 for registration of their marriage in their office secretly. Accordingly both of them agreed and in the morning of 27.2.2016 they registered their name in the register of AMOF0I and in the night their marriage was solemnized as per the Vedic rites and rituals and after marriage they both lived happily as husband and wife at Muniguda.

The appellant has also averred that he has filed Mat. Case No. 39 of 2017 before the learned Civil Judge (Sr.Divn.), Gunupur under Section 9 of the Hindu Marriage

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Act for restitution of their conjugal right which was decreed exparte in his favour. It was further stated that after few days of marriage the present respondent No.1 went to her parent's house and when she did not return, the present appellant went to his in-laws house to bring her back, but the family members of respondent No.1 did not allow her to accompany with him.

The present respondent No.2 also appeared before the court below and filed written statement denying the allegations of respondent No.1 that her marriage with the appellant was performed without her consent.

The court below taking into consideration the above has formulated four issues which are as follows:-

- "i) Whether the case is maintainable ?
- ii) Whether the petitioner is entitled to get a declaration that registration of marriage dated 27.2.2016 and the marriage certificate granted by the respondent No.2 on this aspect is nonest in the eye of law and not binding upon the parties ?
- iii) Whether the marriage between the parties performed as per Hindu rites and customs ?
- iv) To what else relief(s) the petitioner is entitled?"

The wife has examined two witnesses including herself as P.W.1 and her brother as P.W.2. So also the husband has only examined himself as R.W.1. The

respondent No.1 in support of her contention has filed documents before the court below which were marked as Ext. 1 to Ext.6. Besides the oral evidence she has also filed copy of the F.I.R. The appellant has filed documents in

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support of his plea which were marked as Ext. A to Ext.K.

The court below has also taken into consideration the evidence of P.W.2 the brother of respondent No.1 who has supported the evidence of her sister in material particulars. He stated that in the month of March, 2016 they left Muniguda and came to their village Chirulei and during his stay in their village, one day the respondent No.1 threatened him over phone that he had already married to his sister and she could not be given in marriage to somebody else. He further stated that on 13.5.2016 he along with his sister went to the office of respondent No.2 and enquired about the issuance of AMOFOI Marriage Certificate and then his sister immediately filed an application before the respondent No.2 with an affidavit that she had absolutely no relation with the respondent No.1 in any manner and prayed for necessary enquiry and justice to her. The Court below has also taken into consideration the evidence of R.W.1.

Taking into consideration the respective pleas and the evidence on record, the Court below observed that both parties are Hindus and it is admitted fact that their marriage was registered at AMOFOI Organisation and accordingly said marriage certificate was issued by that organization. No document was filed by respondent No.2 to show that their organization has got authority to perform Hindu Marriage and issue marriage certificate in favour of the couples. The Court below has also taken into consideration the decision relied by respondent No.1 in the case of Amulya Kumar Jena Vrs. Statae of Orissa and

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Others reported in 2014(I)CLR 872 wherein this Court held that AMOFOI is not an organization authorized by the State Government under Section-8 of the Act to register marriage and grant marriage certificate. The present appellant has not filed any citation counter to the above submission of the respondent No.1. The court below considering the above held that even if there was a marriage between the parties at AMOFOI, organization and accordingly the marriage certificate issued by respondent No.2 in favour of the parties, but the said marriage is not a valid marriage as per law and

the marriage certificate (Ext.3) issued by respondent No.2 is not binding upon the parties. It was also observed that the marriage certificate is nonest in the eye of law and the petitioner and respondent No.1 are not legally married wife and husband on the strength of said certificate.

With regard to solemnization of marriage at Kalyan Mandap, Muniguda as per Hindu rites and customs, the court below observed that no other witness, much less any of his family member from the side of appellant was examined to corroborate his version. The respondent No.1 has denied that there was no marriage Kalyan Mandap of Muniguda and she has never lived a single day with the respondent No.1. The appellant has failed to convince the court that their marriage was performed at Kalyan Mandap, Muniguda as per Hindu rites and custody.

The appellant has failed to prove valid marriage solemnized in accordance with the customary rites and ceremonies as contemplated under Section 7 of the Hindu Marriage Act. He has also not examined any witnesses to

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corroborate the facts stated in his written statement. Accordingly, the Court below has rejected his plea of valid marriage and recorded a finding by declaring that the certificate issued by the organization is nonest in the eye of law and not binding upon the parties and passed the decree.

In view of the discussions made hereinabove this Court is not inclined to interfere with the same in absence of any further materials on record as there is no error apparent on the face of judgment and decree.

Accordingly the MATA is dismissed.

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S.Panda,J.

..... S.K.Panigrahi, J